



**Order under Section 87 / 88.2
Residential Tenancies Act, 2006**

Citation: Wang v Lakatos, 2025 ONLTB 95856

Date: 2025-12-18

File Number: LTB-L-034838-25

In the matter of: 30 CLAREMORE AVE
Scarborough ON M1N3R8

Between: Yuan Wang Landlords
Wanjun Liao

And

Klaudia Lakatos Former Tenants
Kristof Horvath
Zoltanne Lakatos

Yuan Wang and Wanjun Liao (the 'Landlords') applied for an order requiring Klaudia Lakatos, Kristof Horvath and Zoltanne Lakatos (the 'Former Tenants') to pay the rent and daily compensation that the Former Tenants owe.

Yuan Wang and Wanjun Liao (the 'Landlords') applied for an order requiring Klaudia Lakatos, Kristof Horvath and Zoltanne Lakatos (the 'Former Tenants') to pay the Landlords' reasonable out-of-pocket costs that are the result of the Former Tenants' failure to pay utility costs they were required to pay under the terms of the tenancy agreement.

This application was heard by videoconference on December 9, 2025.

Only the Landlords attended the hearing.

As of 11:59 am, the Former Tenants were not present or represented at the hearing although properly served with notice of this hearing by the Landlords. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlords' evidence. The

docket does not reflect any attempts made by the Former Tenants to join the hearing and the LTB technical team did not advise of any related issues.

Determinations:

1. As explained below, the Landlords proved the allegations contained in the application on a balance of probabilities. Therefore, the Former Tenants shall pay to the Landlords the amount set out below.
2. I note, the matter was called first at 9:59 am and stood down on four occasions for the Landlords to provide the Standard Form Lease and to perform required calculations to support their application. The matter was then called at 11:59 am. Yuan Wang provided testimony on behalf of the Landlords.
3. I am satisfied that the Landlords served the Former Tenants with the application and Notice of Hearing at least 30 days before the hearing in accordance with Rule 3.3 of the LTB's Rules of Procedure.
4. The Landlords filed a Certificate of Service (COS) with the LTB on November 3, 2025 stating the Former Tenants were served the application and Notice of Hearing by email as consented to as per the Residential Tenancy Agreement.
5. Based on the submissions of the Landlord, I am satisfied that the Former Tenants were served the required documents on November 3, 2025. The email was the same as the one provided in the lease agreement, used throughout the tenancy and was not returned as undeliverable.
6. While the Landlords did not send to the Former Tenants copies of the various utility bills as evidence, the Landlords did email them during the tenancy. I was satisfied there was no prejudice to the Former Tenants as they had already received copy of the utility bills.

How Did the Tenancy End?

7. The Landlord said they issued an N11 agreement to terminate the tenancy on February 17, 2025 but the Former Tenants did not sign the agreement. The Landlord said that when the Former Tenants advised they were moving out on March 1, 2025, they accepted the termination date and grateful the Former Tenants moved out.
8. The Former Tenants vacated the rental unit on March 1, 2025.
9. The application was filed within one year after the Former Tenants ceased to be in possession of the rental unit.

Rent and Compensation Owing

8. The lawful rent was \$2,800.00. It was due on the 1st day of each month.
9. Based on the Monthly rent, the daily rent/compensation is \$92.05. This amount is calculated as follows: \$2,800.00 x 12, divided by 365 days.
10. The Former Tenants have not made any payments since the application was filed.
11. The tenancy ended on March 1, 2025 as a result of the Former Tenants moving out in accordance with an agreement to terminate the tenancy. Therefore, the Former Tenants' obligation to pay rent ended on that date.
12. The rent arrears and daily compensation owing to March 1, 2025 are \$2,892.05.
13. The Landlord said the Former Tenants did not pay rent for February 2025 and the rent deposit is applied to February 2025.
14. The Former Tenants owe the per diem rent for March 1, 2025.
15. Interest on the rent deposit, in the amount of \$37.97 is owing to the Former Tenants for the period from August 16, 2024 to March 1, 2025
16. The Landlords incurred costs of \$186.00 for filing the application and are entitled to reimbursement of those costs.

Compensation for Unpaid Utility Costs

15. The Former Tenants failed to pay heat, electricity and/or water costs that they were required to pay under the terms of the tenancy agreement.
16. The Landlords' application claims utility costs in the amount of \$1,400.71.
17. The Landlord reviewed the terms of the lease at the hearing to support their claims.
18. The lease confirms that the Former Tenants were required to pay 67% of the utility costs related to electricity, heat and water.
19. At the hearing, the Landlord reviewed the various invoices from Toronto Hydro, City of Toronto and Enbridge. The Landlord provided a detailed analysis the applicable period covered, the total invoice and the proportionate amount owing by the Former Tenants.
20. Based on the evidence before the Board and on a balance of probabilities, I am satisfied that the Landlords incurred reasonable out-of-pocket expenses of \$1,400.17 as a result of the Former Tenants' failure to pay heat, electricity and/or water costs.
21. This order contains all of the reasons for the decision within it. No further reasons shall be issued.

It is ordered that:

1. The Former Tenants shall pay to the Landlords \$2,892.05, which represents rent and compensation owing up to March 1, 2025.
2. The Former Tenants shall also pay to the Landlords \$1,400.17, which represents the reasonable out-of-pocket expenses the Landlords incurred as a result of the unpaid utility costs.
3. The Former Tenants shall pay to the Landlords \$186.00 for the cost of filing the application.
4. The Landlords owe \$2,837.97 which is the amount of the rent deposit and interest on the rent deposit, and this is deducted from the amount owing by the Former Tenants.
5. The total amount the Former Tenants owe the Landlords are \$1,640.25*. See Schedule 1 for the calculation of the amount owing.
6. If the Former Tenants do not pay the Landlords the full amount owing on or before December 29, 2025, the Former Tenants will start to owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.

December 18, 2025

Date Issued

Dana Wren

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

* Refer to the attached Summary of Calculations.

**Schedule 1 SUMMARY
OF CALCULATIONS**

Amount the Former Tenants must pay the Landlords:

Rent and Compensation Owing To March 1, 2025	\$2,892.05
Utility Costs	\$1,400.17
Application Filing Fee	\$186.00
Less the amount of the last month's rent deposit	- \$2,800.00
Less the amount of the interest on the last month's rent deposit	- \$37.97
Total amount owing to the Landlords	\$1,640.25